

1.	26CV0328	ANTON v. EL DORADO UNION HIGH SCHOOL
Motion for Judgment on the Pleadings		

The Notice does not comply with Local Rule 7.10.05. Repeated violations will be grounds for sanctions pursuant to Local Rule 7.12.13.

This action arises from a single-vehicle accident that occurred on April 2, 2025, on westbound U.S.-50 in El Dorado County, California. Plaintiff, by and through her Guardian Ad Litem, Eloina Brambila (hereinafter “Plaintiff”), alleges she sustained injuries while a passenger in a vehicle owned by Defendant El Dorado Union High School District (hereinafter “District”) and driven by Defendant Hadisa Saedy (collectively “Defendants”), who was acting within the course and scope of her employment with the District.

Meet and Confer

“(a) Before filing a motion for judgment on the pleadings pursuant to this chapter, the moving party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to the motion for judgment on the pleadings for the purpose of determining if an agreement can be reached that resolves the claims to be raised in the motion for judgment on the pleadings. If an amended pleading is filed, the responding party shall meet and confer again with the party who filed the amended pleading before filing a motion for judgment on the pleadings against the amended pleading. (Code of Civil Procedure, § 439(a))

“A determination by the court that the meet and confer process was insufficient is not grounds to grant or deny the motion for judgment on the pleadings.” (Code of Civil Procedure, §439(a)(4))

Based on the Declaration of Andrew E. Pereira, the Court acknowledges that the parties sufficiently engaged in meet and confer efforts.

Request for Judicial Notice

Cal. Rules of Court, rule 3.1113(l), covers judicial notice, requiring that “[a]ny request for judicial notice shall be made in a separate document listing the specific items for which notice is requested and shall comply with rule 3.1306(c).”

Judicial notice is a mechanism which allows the court to take into consideration matters which are presumed to be indisputably true. California Evidence Code Sections 451, 452, and 453 collectively govern the circumstances in which judicial notice of a matter may be taken. While Section 451 provides a comprehensive list of matters that must be judicially noticed, Section 452 sets forth matters which *may* be judicially noticed. A trial court is required to take

judicial notice of any matter listed in section 452 if a party requests it and gives the other party sufficient notice to prepare to meet the request. (Evidence Code § 453)

Defendants request that the Court take judicial notice of Plaintiff's government claim and subsequent rejection, along with the Complaint and Answer filed in this case. There is no opposition. Defendants' request for judicial notice is granted.

Judgment on the Pleadings

Defendants move for judgment on the pleadings pursuant to California Code of Civil Procedure §438 on the grounds that Plaintiff's government claim was rejected on June 23, 2025, and Plaintiff filed her Complaint on February 4, 2026, when it was required to be filed on or before December 23, 2025. Defendants argue that Plaintiff's Complaint is time barred by the six-month statute of limitations set forth under the Government Tort Claims Act (Gov. Code §§ 905, 911.2(a), 845.4, 945.4, 945.6(a)(1), and 950.2.) Defendants argue that the statutory requirements are mandatory and strictly enforced. (*Apollo v. Gyaami* (2008) 167 Cal.App.4th 1468, 1486, fn. 14; *Stanley v. City and County of San Francisco* (1975) 48 Cal.App.3d 575, 579.)

Plaintiff states that Government Code § 946.6(c)(1) and (4) deal with extensions for late filings; however, those subsections address late filings of the claim, not the lawsuit. In support of the late filing, Plaintiff cites to *Rousseau v. City of San Carlos* (1987) 192 Cal.App.3d 498 and *J.M. v. Huntington Beach Union High School Dist.* (2017) 2 Cal.5th 648. However, those cases are different because it was the filing of the government claim that was late, not the lawsuit. Plaintiff does not provide case law showing relief from the time limits prescribed for the filing of the lawsuit.

In *J.M. v. Huntington Beach*, the court cites to a case that is similar to the case before this Court; in *D.C. v. Oakdale Joint Unified School Dist.* (2012) 203 Cal.App.4th 1572, the court addresses Government Code §946.6 and the six-month statute of limitations for petitioning the court following a denial by the board. In that case, the Court of Appeal held that the six-month statute of limitations is mandatory and not discretionary, absent a showing of estoppel. *Id.* at 1582. In that case, the Court of Appeal remanded the case and allowed the plaintiff to file an amended Complaint, asserting defendants were estopped from asserting the statute of limitations.

The Court agrees that Plaintiff's Complaint is untimely but will offer Plaintiff leave to amend the pleadings to address the statute of limitations defect and any applicable defenses for failure to comply.

TENTATIVE RULING #1: JUDGMENT ON THE PLEADINGS IS GRANTED, WITH LEAVE TO AMEND WITHIN 10 DAYS FROM THE DATE OF THIS RULING.

May 22, 2026
Dept. 9
Tentative Rulings

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.